

23STCV09459 23STCV09459

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-08-06

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Case Number: 23STCV09459 Hearing Date: August 6, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/06/2026

CASE NUMBER: 23STCV09459

CASE NAME: BROCK BARRETT, et al. vs MAURICIO MENACHE, et al.

MOVING PARTY: Plaintiffs Brock Barrett

OPPOSING PARTY: Defendant Mauricio Menache, an individual and as trustee of the Mauricio Menache Revocable Living Trust dated January 28, 2022

PROCEEDING: Motion to quash subpoena for production of business records

RULING SUMMARY: The Motion hearing is continued to _____, 2026, for further briefing on the issue of the Court's jurisdiction and authority to quash or issue a protective order, as requested by Plaintiff, or to compel production, as requested by Plaintiff.

Plaintiff

seeks an order quashing a business records subpoena issued to the Custodian of Records of non-party Mike Zykoff, who has presented evidence that he works and lives in the state of Texas, which is also the location where Defendant, through counsel or deposition officer, has communicated with him. In the Opposition to the motion, Defendant asks the Court to compel production of the records sought in the subpoena and/or a letter that Defendant stated clarified the scope of the records

requested.

Zykoff

engaged in some communications in which he asked that the subpoena be mailed to him in Texas and stated or suggested that he would produce records. There is no evidence that he stated that he would agree that any order issued by this Court regarding the subpoenas would be effective against him in Texas.

There

are procedures under the Interstate and International Depositions and Discovery Act for subpoenaing witnesses who are out of state for an action that is in the state. California has adopted that law in Code of Civil Procedure section 2029.100, for witnesses in California that a party involved in an action in another state wants to subpoena for purposes of the out-of-state action. Neither party has addressed the fundamental question whether Texas has adopted that law or has other procedures for a party to an action in California to subpoena a Texas resident, or whether and what jurisdiction or authority this Court has to address the issues raised in the motion and the opposition.

Therefore,

the Court continues the hearing to _____, 2026, at 8:30AM, so that these issues may be briefed. Briefing schedule will be discussed at the hearing.